

Court No. - 21

Case :- WRIT - C No. - 6202 of 2018

Petitioner :- Ram Bihari And 5 Others

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Raj Kumar Tiwari

Counsel for Respondent :- C.S.C.

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

The petitioners have filed the instant writ petition challenging the validity of the bills issued to them for consumption of electrical energy on the ground that it is incorrect and highly inflated.

Clause 6.5 of the Electricity Supply Code, 2005 provides a remedy to a consumer to file a complaint before the competent authority with an obligation upon the authority to decide the same and inform the consumer if the consumer disputes the accuracy of the bill.

In view of the existence of the statutory alternative remedy available to the petitioners under Clause 6.5 of the Electricity Supply Code, 2005, we are not inclined to entertain the writ petition and the same is, accordingly, dismissed with liberty to the petitioners to approach the competent authority individually under Clause 6.5 of the Electricity Supply Code, 2005 within a period of 10 days from today.

Considering the aforesaid facts, we dispose of the writ petition by directing the concerned authority that in case the petitioners make a representation before him in respect of his grievances annexing therewith all relevant documents, he shall decide the same by a reasoned and speaking order in accordance with law within a period of four weeks from the date of making representation.

Order Date :- 20.2.2018

Ashish Tripathi